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 The Minister for Primary and Secondary Education
 P.O. Box 16375
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 Date

June 6, 2022

Our reference

z2022-05979

Your letter of

October 7, 2022 and April 19, 2023

Contact person

070 8888 500

Your reference

34034688

Subject

Advice on the draft law regarding the reduction of absenteeism

Dear Mr. Wiersma,

In a letter dated October 7, 2022, the Authority for Personal Data (AP) was consulted based on the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft law amending the Compulsory Education Act 1969 and certain other education laws in relation to reducing absenteeism. An amended draft bill (hereinafter: the draft) was sent by email on April 19, 2023. The AP's advice pertains to this draft of April 19, 2023.

The AP has several comments regarding the draft and advises that these should be taken into account.

Purpose of the draft

The government has set the goal in the coalition agreement 2021-2025 to reduce the number of children who unnecessarily do not attend school to zero.¹ The draft aims to contribute to this by preventing and reducing absenteeism and school dropout. To this end, the following five measures are proposed:

1. Tightening the absenteeism policy in schools and institutions (hereinafter: schools):

The draft stipulates that elements to be determined must always be included in the absenteeism policy. This policy will be included in the school guide or student statute.

¹ Coalition agreement 2021 - 2025, Looking out for each other, looking forward to the future, December 15, 2021, p. 24.

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2. Mandatory registration of all types of absenteeism in categories:²

In lower legislation, it is regulated that schools must register absence in the categories of authorized, unauthorized, and luxury absenteeism³. Schools may note additional reasons for absence when they describe them in their absenteeism policy. This will provide better and clearer insight into why and

when children are absent or drop out.⁴

3. Timely involvement of the attendance officer in absenteeism:

The draft clarifies that schools can provide absenteeism data to the attendance officer (via the education participants register) when there is absenteeism without a valid reason that amounts to less than sixteen hours in four weeks.⁵

4. Improving regional and national visibility on absenteeism:

The draft stipulates that absenteeism data, aggregated at the school level, will be provided to the Minister of Education, Culture and Science for policy preparation regarding absenteeism, to the attendance officer for oversight of compulsory education, and to the collaboration partnership for ensuring comprehensive educational offerings. The number of exemptions based on Article 5, under a, of the Compulsory Education Act 19696 (hereinafter: the exemption) in the relevant region will also be provided to the collaboration partnership to ensure a comprehensive range of educational opportunities in that region.

5. Tightening the exemption procedure:

The draft stipulates that a doctor⁷ must take the educational perspective of the young person into account in their statement for an exemption. At the request of the doctor, the collaboration partnership advises on the educational perspective. There will also be more variation in the duration of the exemption.⁸

Prior to

Objective of reducing the number of children not attending school to zero

The draft aims to contribute to the objective of reducing the number of children not attending school to zero. Although this reduction to zero is a noble goal, it can also be considered unrealistic. (Sporadic) truancy or luxury absenteeism will not, at least not without very drastic measures, be able to be completely eliminated.

2 Schools currently have no obligation to register authorized absenteeism.

3 Luxury absenteeism refers to going on vacation during the school period without the permission of the school or attendance officer.

4 Explanatory memorandum, p. 14.

5 Currently, there is only an implicit legal possibility to provide this data (explanatory memorandum, p. 23). Schools are required to provide absenteeism data when the absenteeism without a valid reason amounts to sixteen hours or more in four weeks.

6 This concerns a full exemption from compulsory education for young people who cannot be enrolled in a school for psychological or physical reasons.

7 Or by a university-trained or similarly qualified pedagogue or psychologist as determined by ministerial regulation.

8 Currently, the exemption can be granted for a duration of one year or for the entire compulsory education age. The draft proposes to eliminate this dichotomy. Instead, the doctor's statement should indicate for what period they believe the young person is unable to attend school.

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will be eradicated. There is a risk that this purpose will be used to justify (ever) further infringements on the protection of personal data of children and young people.

The AP emphasizes that this purpose is not a blank check for data processing, but that all data processing, whether proposed in this draft or not, must comply with the Charter of Fundamental Rights of the European Union and the GDPR, as well as the principle of proportionality applicable within those frameworks.

Advice

Problem Statement: Increase in Exemptions

According to the explanation, the number of exemptions has increased significantly over the past ten years. The explanation mentions more than a doubling in the school year 2021-2022 compared to the school year 2010-2011.⁹ The introduction of appropriate education was expected to lead to a decrease.¹⁰

In this context, the explanation refers to a study from 2016¹¹ regarding the causes of this increase.¹² The final report of this study (hereinafter: the final report) concludes that the perception of this increase deserves some nuance.¹³ Although the growth according to the final report may be partly factual, it is also partly a recorded growth. Due to the increased attention to registration in recent years and the clarification of definitions, the figures have been inflated in several municipalities.¹⁴ Moreover, for the vast majority of those exempted, the issues are such that an exemption also seems justified, according to the final report.

These nuances are not addressed in the explanation accompanying the draft. The posed problem statement may therefore present a distorted view of reality.

The AP advises aligning the depiction of the increase in the number of exemptions in the explanation with the final report.

Special Personal Data

The draft stipulates that special personal data, namely health data, may be part of the absenteeism data within a school. It also states that the collaboration framework may process health data to advise the physician on the educational perspective in the context of granting an exemption. The processing of special personal data is prohibited under the GDPR,¹⁵ unless there is an exception as mentioned in Article 9, paragraph 2, of the GDPR. To do so, all requirements set by the relevant exception must be met, including the necessity requirement. The explanation does not indicate which exception applies.

The AP advises indicating in the explanation which exception applies and how the requirements set by the relevant exception are met, including the necessity requirement.

Advising Caribbean Netherlands

It is not for the AP to provide advice on the draft as far as it concerns the Caribbean Netherlands. The AP considers submitting the draft for advice to the Committee for the Supervision of Personal Data Protection BES, should this not have already occurred.

Workload AP

The AP notes that the draft is not expected to necessitate additional efforts by the AP.

Disclosure of the Advice

The AP intends to make this advice public no earlier than four weeks after its issuance on the website www.autoriteitpersoonsgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

Yours sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman